

Then the blessed Symmachus assembled 115 bishops and in the synod was acquitted of the false accusation and Peter of Altinum, the intruder upon the apostolic see, and Laurentius of Nuceria were condemned, because during the lifetime of the bishop Symmachus they had invaded his see.¹ Then the blessed Symmachus was reinstated with glory in the apostolic see by all the bishops, priests and deacons and all the clergy and the people, to sit as bishop in the church of the blessed Peter.

Then Festus, the patrician, began to slaughter in the city the clergy who were communicating with the blessed Symmachus³ and he expelled consecrated women from their dwell-

At that time Festus, the ex-consul and leader of the senate,² and Probinus, the exconsul, began to fight in the city of Rome with other senators, in particular with Faustus, the exconsul,

¹ The Roman synod of 501 was convened to pass on the whole situation by order of Theodoric and with the consent of Symmachus. It held three sessions, the first during the spring or early summer at the church of Santa Maria in Trastevere. At this session Symmachus agreed to appear, waiving the claim of his see not to be judged by inferiors and overlooking the fact that Theodoric had seized the lands and buildings of the church, leaving him only St. Peter's. The second session met in September at the basilica of Santa Croce in Gerusalemme on the farther side of the city. Symmachus set out to cross from the Vatican but was attacked by a band of enemies on the way and many of the priests accompanying him were killed. Thereafter Symmachus remained shut up in the Vatican and refused to attend another session of the synod. Nevertheless in October the assembled bishops declared that they could find no reason why he should not continue in full enjoyment of his office and left the accusations against him to the judgment of God. They solemnly condemned both Laurentius and Peter of Altino, Theodoric's "visitor." In November, 502, Symmachus on his own initiative called another synod of bishops, which proceeded to annul an irregular decree forbidding the pope to alienate church property, that seems to have been employed by Symmachus' opponents as a basis for their charges against him. *Supra*, p. 110, n. 3. The synod indeed passed other ordinances prohibiting the pope to dispose of rural property but allowing him to sell city houses which cost too much to maintain. In 505 Symmachus petitioned Theodoric to compel the patrician Festus, the instigator of the violence which continued to harass the city, to abstain from further opposition and to order Laurentius to leave Rome. Dioscorus, a young deacon from Alexandria, was able to persuade Theodoric to take this step and Symmachus resumed possession of all the churches and ecclesiastical estates. Duchesne, *op. cit.*, p. 264, n. 10. Jaffé, *Regesta*, pp. 97-98. Hefele, *loc. cit.* Dioscorus' powers of eloquence served the Roman church even more conspicuously later. *Infra*, pp. 127-130.

² Festus was consul in 472, Probinus in 489 and Faustus in 490. They are all three mentioned as persons of high reputation in a contemporary work by Ennodius. *Opusc.* VI. Quoted by Duchesne, *op. cit.*, p. 265, n. 12.

³ This passage is not probably descriptive of any one occasion but of the general